

2017 P L C (C.S.) 583

[Lahore High Court]

Before Jawad Hassan, J

Professor Dr. ZAFAR IQBAL CHAUDHRY

Versus

PROVINCE OF PUNJAB and others

Writ Petition No.1319 of 2017, decided on 19th January, 2017.

Punjab Employees Efficiency, Discipline and Accountability Act (XII of 2006)---

---S. 6---Suspension of employee---Scope---Employee against whom action was proposed to be initiated could be placed under suspension if in the opinion of competent authority it was necessary or expedient---Impugned order for suspension of employee, in the present case, was passed after constituting a committee and thorough investigation was made---Constitutional petition was not maintainable against suspension order due to bar contained under Art.212 of the Constitution---Order of suspension being not a penalty would not violate any legal right vested in the suspension order---Employee had other remedies under Punjab Employees Efficiency, Discipline and Accountability Act, 2006---Constitutional petition being premature was dismissed in limine.

Muhammad Amin Mughal v. Secretary Local Government and Rural Development Department/Chairman Punjab Local Government Board, Government of the Punjab, Civil Secreariat, Lahore and 4 others 2002 PLC (C.S.) 816; Pakistan and others v. Public at Large and others PLD 1987 SC 304; Tahir Ashraf Durrani v. The Chairman, Central Board of Revenue, Islamabad and 3 others 2004 PLC (C.S.) 1550; The Divisional Superintendent, Pakistan Railways, Lahore v. Muhammad Halim through Legal Representatives and others PLD 2000 SC 55 rel.

Mushtaq Ahmad Mohal for Petitioner.

Ashfaq Ahmad Kharal, AAG with Ghulam Mustafa S.D. (AMI-I) Specialized Health Care and Medical Education Department.

ORDER

JAWAD HASSAN, J--- Through this Constitutional Petition, the Petitioner has sought setting aside of order dated 8.1.2017 passed by Respondent No.2, whereby the service of the Petitioner was suspended.

2. Facts briefly for the disposal of this constitutional petition are that the Petitioner is a doctor at Jinnah Hospital, who has been suspended vide impugned order dated 8.1.2017 on the ground that a patient namely Mst. Zohra Bibi was brought to Jinnah Hospital, Lahore and she stayed there for 8 hours but no Professor, Associate Professor, Assistant Professor or not even Senior Registrar visited her and provide her medical assistance, hence she died.

3. Counsel for the Petitioner stated that the Petitioner has been suspended without any show-cause notice and impugned order is against the law because the Petitioner has not been heard before passing of the order.

4. During the course of arguments, learned Law Officer has placed on record interim report submitted on behalf of Respondents Nos.1 and 2, which indicates that on the directions of the Chief Minister/Competent Authority, the probe committee concluded its findings that along with many other lapses that occurred at different institutions, the patient remained on floor at Jinnah Hospital, Lahore from 7.00 A.M. till about 9.30 A.M. Moreover, the patient was not attended by any Professor or Associate Professor or even by a Senior Registrar throughout her stay in Medical Unit, Jinnah Hospital, Lahore for about 8 hours including the morning hours of 2nd January, 2017 when apparently the whole staff was on duty. Consequently, the probe committee fixed responsibility on Prof. Dr. Zafar Iqbal Ch, In-charge/Head of Medical Unit-I, Jinnah Hospital, Lahore for not only properly managing the patient but also that no one even visited her. Hence, the Petitioner was held responsible and was placed under suspension for non-examination of patient Mst. Zohra Bibi in his Unit. Further as per report, the petitioner failed to treat the patient as well as to put note call for Nephrology as advised by the Cardiologist.

5. Arguments heard and record perused.

6. After hearing arguments of both the parties, it emerges that issue involved is whether the Petitioner has been rightly suspended by the Competent Authority under the Punjab Employees Efficiency, Discipline and Accountability Act, 2006 (The "PEEDA Act"). While examining the record, the Chief Minister has passed the following order:-

"A patient named Zohra Bibi was brought to Jinnah Hospital Lahore. She stayed mere for 8 hours but no Professor, Associate Professor, Assistant Professor or even a Senior Registrar visited her. Inquiry committee constituted by the Chief Minister has recommended action against Prof Dr. Zafar Iqbal Ch., Professor of Medicine, AAIMC/Jinnah Hospital, Lahore on the above charges. Due to poor supervision of Prof Dr. Zafar Iqbal Ch. Professor of Medicine, AIMC/Jinnah Hospital, Lahore the patient died. Accordingly, Prof Dr. Zafar Iqbal Ch. Professor Medicine, AIMC Jinnah Hospital, Lahore is hereby placed under suspension with immediate effect under Section 6 of Punjab Employees Efficiency, Discipline and Accountability Act, 2006."

Report submitted by Respondents Nos.1 and 2 indicates that the Chief being Minister/Competent Authority under Section 6 of the PEEDA Act, placed the Petitioner under suspension along with others in the light of report of probe committee containing (1) Mr. Irfan Ali, Chairman, CMIT (Convener), (2) Prof. Dr. Faisal Masud, Vice Chancellor, KEMU, Lahore, (Co-Convener), (3) Prof. Dr. Sardar Fakhar Iman, Vice Chancellor, FJMU, Lahore, (Member) (4) Dr. Salman Shahid, Addl. Secretary (Tech.) SHC&MED (Member). As per Section-6 of PEEDA Act, an employee against whom action is proposed to be initiated can be placed under suspension if in the opinion of the Competent Authority, suspension is necessary or expedient. The Section 6 of ("PEDA" Act) is reproduced hereunder:-

"An employee against whom action is proposed to be initiated under section 5 may be placed under suspension for a period of ninety days, if in the opinion of the competent authority, suspension is necessary or expedient, and if the period of suspension is not extended for a

further period of ninety days within thirty days of the expiry of initial period of suspension, the employee shall be deemed to be reinstated."

The above Section empowers the Competent Authority to suspend if it is necessary. The argument of the Petitioner that he has not been heard before passing suspension order is not tenable, because order was passed after constituting a committee and thorough investigation was made. Further constitutional petition is not maintainable against suspension order. Reliance in this respect is placed upon Muhammad Amin Mughal v. Secretary Local Government and Rural Development Department/ Chairman Punjab Local Government Board, Government of the Punjab, Civil Secretariat, Lahore and 4 others (2002 PLC (C.S.) 816), wherein the Court has held:-

"Suspension order or holding of inquiry against civil servant being step towards passing of final order, Constitutional petition was not maintainable against such interim order of Petitioner, if found guilty of charge and some section was taken against him, he would have remedy to file appeal before the Service Tribunal, therefore, High Court, in its Constitutional jurisdiction could not interfere in interim orders and Constitutional petition against suspension order which was an interim order was not maintainable."

Even otherwise, the instant petition is not maintainable due to bar contained under Article 212 of the Constitution of Pakistan, 1973. Reliance in this respect is placed upon Pakistan and others v. Public at Large and others (PLD 1987 SC 304) and Tahir Ashraf Durrani v. The Chairman, Central Board of Revenue, Islamabad and 3 others (2004 PLC (C.S.) 1550). Also the Hon'ble Supreme Court in The Divisional Superintendent, Pakistan Railways, Lahore v. Muhammad Halim through Legal Representatives and others (PLD 2000 SC 55), has held that the order of suspension of civil servant being not a penalty, would not, violate any legal right vested in the suspended order.

In view of the above, since the petitioner has been suspended under Section 6 of PEEDA Act, he has other remedy available to him under the PEEDA Act, 2006. In the light of above judgments, writ petition being premature is hereby dismissed in limine.

ZC/Z-3/L Petition dismissed.